SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Civil Appeal No. 5733 of 2019 (YEAR: 2020)

CORAM: M.M. SHANTANAGOUDAR, R. SUBHASH REDDY

Canara Bank
... Appellant(s) / Petitioner(s)
Versus
United India Insurance Co. Ltd.
... Respondent(s)

Acts Referred:	Consumer Protection Act, 1986, Insurance Act, 1938
Sections:	Section 14 Consumer Protection

JUDICIAL HEADNOTE & SUMMARY

Held that farmers who stored produce in a cold storage destroyed by fire are third-party beneficiaries entitled to recover directly under the insurance policy.

RATIO DECIDENDI

The Court held that: Held that farmers who stored produce in a cold storage destroyed by fire are third-party beneficiaries entitled to recover directly under the insurance policy. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Canara Bank v. United India Insurance Co. Ltd. (Civil Appeal No. 5733 of 2019) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Consumer Protection Act, 1986, Insurance Act, 1938, particularly Section 14 Consumer Protection. Held that farmers who stored produce in a cold storage destroyed by fire are third-party beneficiaries entitled to recover directly under the insurance policy.

OPERATIVE ORDER

ORDER: Decided